

20BBCV00819 20BBCV00819

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Case Number: 20BBCV00819 Hearing Date: September 22, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT

FIDELITY BROKERAGE SERVICES LLC'S PETITION TO CONFIRM ARBITRATION AWARD AND
REQUEST FOR DISMISSAL

I. INTRODUCTION

This action arises from a dispute
between Plaintiff Roobik Thorossian ("Plaintiff") and Defendant Fidelity
Brokerage Services LLC ("Fidelity") concerning Plaintiff's Fidelity accounts.

On September 10, 2021, the Court
granted Fidelity's motion to compel Plaintiff's claims against Fidelity to
arbitration and stayed the action pending completion of the arbitration.
(9/10/21 Minute Order.)

Plaintiff and Fidelity subsequently
completed arbitration, and on May 22, 2026, the arbitration panel issued an
award in favor of Fidelity. On June 17, 2026, the Court lifted the stay.
Fidelity thereafter filed the instant petition to confirm the arbitration award
on August 28, 2026. No opposition has been filed.

II. LEGAL STANDARD

Code of Civil Procedure, section
1285 states that "[a]ny party to an arbitration in which an award has been made
may petition the court to confirm, correct or vacate the award. The petition
shall name as respondents all parties to the arbitration and may name as
respondents any other persons bound by the arbitration award." Upon service and

filing of a petition to confirm arbitration award, the court shall confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Id., section 1286.) Where the petition is served but no response is served and filed, the allegations in the petition are deemed admitted. (Code Civ. Proc., section 1290; Taheri Law Group, A.P.C. v. Sorokurs (2009) 176 Cal.App.4th 956, 962.) The court shall confirm the award as made unless it is corrected or vacated. (Code Civ. Proc., section 1286.) If the award is confirmed, judgment is entered in conformity with it. (Id., section 1287.4.).

III. ANALYSIS

Fidelity

moves the Court to confirm the arbitration award dated May 22, 2026, entered in its favor following arbitration before FINRA Dispute Resolution Services in Arbitration No. 22-02022.

Here, Fidelity's petition includes copies of the Fidelity Account Customer Agreement and Fidelity Cash Management Agreement containing the arbitration agreements. (Exhs. A-B.) The Fidelity Account Customer Agreement provides that disputes between the account holder and Fidelity are to be resolved through arbitration.

The petition also includes a copy of the FIRNA Dispute Resolution Services Arbitration Award in Arbitration No. 22-02022. (Exh. C.) The arbitration panel consisted of Paula K. Konikoff, Maureen Weston, and Linda M. Lannone. The panel signed the award between May 21 and May 22, 2026, and the award was served on the parties on May 26, 2026. (Notice, p. 1.)

The award denies Plaintiff Roobik Thorossian's claims in their entirety and further denies any claims for relief not specifically addressed in the award, including any request for punitive damages. (Exh. C; p. 2.)

Fidelity previously moved to compel arbitration in this action, which the Court granted on September 10, 2021, and stayed the action pending completion of arbitration. The arbitration was completed on April 2, 2026, and the court lifted the stay on June 17, 2026.

No opposition was filed. Based on the foregoing, the Court GRANTS Fidelity's petition to confirm the arbitration award and enters judgment in conformity with the award.

IV. CONCLUSION AND ORDER

The Court GRANTS Fidelity's petition to confirm the arbitration award. Judgment shall be entered in conformity with the award in favor of Fidelity Brokerage Services LLC and against Plaintiff Roobik Thorossian. Because the award denies all claims asserted by Plaintiff against Fidelity, Fidelity is dismissed from this action.

Fidelity is to give notice.

Dated: September 22, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT